

The Commission contends that there is a strong interest in protecting the confidentiality of third-party witnesses and victims, as well as Commission employees, and the mental processes by which the Commission reached decisions. The Commission further argues that some of the documents sought are also protected by attorney-client privilege and/or the attorney work-product doctrine.

The Commission’s argument appears to ignore the narrowed scope of the Subpoena—to be limited solely to documents disclosing (1) statements, arguments, and/or other evidence proffered by Plaintiff and (2) the procedural process employed. This narrowing by Defendant presumably invites the Commission to redact the names and other identifiers of third-party witnesses and victims and Commission employees, or information concerning the deliberations of the Commission panel members and/or communications with Commission legal counsel. This is confirmed by Defendant in Reply. (Reply, 4:26-5:2.)

Specifically with respect to the privacy of third parties, although the Opposition is accompanied by a privilege log listing 17 responsive documents withheld from the Commission’s production, the Opposition does not refer to the privilege log to show the existence of any documents containing third-party witnesses or victims. The Court’s review of the privilege log indicates that, for three documents, it notes: “Redactions made for Third Party Information and Private Personal Information.” (Declaration of Joseph A. Halabrin (“Halabrin Decl.”), ¶ 10, Exh. E.) The Commission offers no reason why third-party privacy cannot be sufficiently maintained by such redactions. Nor does the Commission offer any reason why this confidentiality cannot be sufficiently maintained by a protective order between counsel and the parties in this matter.

With respect to the attorney work product doctrine, the attorney-client privilege, and the deliberative process privilege, the narrowed scope does not compel the Commission to produce documents reflecting this information. As confirmed by Defendant in Reply, Defendant does not object, and expects, the Commission to redact such information. While the Narrowed Subpoena seeks documents showing the procedural process employed for the hearing, Defendant expressly does not seek any internal deliberations or mental processes. (See, e.g., Mem., 7:26.) Rather, it appears to the Court that Defendant seeks documents containing non-privileged/non-private information, which demonstrate, in general, the procedural process employed, in support of Defendant’s defense that Plaintiff was provided an adequate opportunity to clear his name.

Based on the foregoing, the Court does not find that the Commission has justified its objection on the grounds that privacy and privilege protections categorically restrict, outright, the production of responsive documents.

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Elizabeth Saldivar v. George Loudis et al

25CV000506

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING: The matter is CONTINUED to July 30, 2026, to permit Applicant to provide proof of service of the notice and moving papers on Elizabeth Saldivar.

While the Declaration of Counsel indicates service of the moving papers by personal service, it fails to evidence when service was made, fails to evidence service of the Notice of Hearing, and states that a Proof of Service will be filed.

“The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.” (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05.)

The moving party also failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

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Thomas Pollock et al v. Angel Melendez Pimentel et al

25CV000964

DEFENDANT FEDERAL INSURANCE COMPANY’S MOTION TO COMPEL
COMPLIANCE WITH SUBPOENAS TO DLA PIPER LLP

TENTATIVE RULING: The motion is DENIED.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Defendant Federal Insurance Company (“**Federal**”) moves, pursuant to Code of Civil Procedure section 2031.310,⁴ to compel: (i) third-party DLA Piper LLP (“**DLA Piper**”) to produce documents pursuant to Federal’s January 30, 2026 Subpoena to DLA Piper; and (ii) Plaintiffs Thomas Pollock (“**Pollock**”), Eileen Tabios, and Galatea Vineyards and Winery, LLC (collectively, “**Plaintiffs**”) to produce a supplemental privilege log identifying the names of all senders, recipients, and copyees of the documents at entry nos. 1, 3, and 4, which were

⁴ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.